



CENTRAL LAW OFFICERS (AMENDMENT) ORDINANCE, 2010.

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ORDINANCE No. XVII OF 2010

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ORDINANCE

WHEREAS it is expedient further to amend the Central Law Officers Ordinance, 1970 (VII of 1970) for the purposes hereinafter appearing;

AND WHEREAS the National Assembly and the Senate are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement.- (1) This Ordinance may be called the Central Law Officers (Amendment) Ordinance, 2010.

(2) It shall come into force at once and shall be deemed to have taken effect on and from the First day of October, 1995.

2. Amendment of section 2, Ordinance, VII of 1970.- In the Central Law Officers Ordinance, 1970, (VII of 1970), hereinafter referred to as the said Ordinance, in section 2, in subsection (1), for the word "and" a comma shall be substituted and after the word "Counsel" the words "and Federal Counsel" shall be inserted.

3. Amendment of section 3, Ordinance, VII of 1970.- In the said Ordinance, in section 3,-

(i) in paragraph (a), the word "and" occurring at the end shall be omitted;

(ii) in paragraph (b), after comma ",", occurring at the end the word "and" shall be added; and

(iii) after paragraph (b) amended as aforesaid, the following new paragraph shall be inserted, namely:--

"(c) in the case of a Federal Counsel he has at least seven year practice as an Advocate of a High Court.

4. Amendment of section 3A, Ordinance, VII of 1970.- In the said Ordinance, for section 3A, the following shall be substituted, namely:-

"3A. Resignation.- An Additional Attorney General, Deputy Attorney General, Standing Counsel or a Federal Counsel may by writing under his hand addressed to the President resign his office."

5. Amendment of section 4, Ordinance, VII of 1970.- In the said Ordinance, in section 4,-

- (i) for the word "and" a comma shall be substituted and after the word "Counsel" the words "and Federal Counsel" shall be inserted; and
- (ii) after the word "Pakistan" occurring at the end the comma and words ", including a tribunal or a special court constituted under any law" shall be added.

6. Amendment of section 4A, Ordinance, VII of 1970.- In the said Ordinance in section 4A,-

- (i) for the word "and" occurring for the first time a comma "," shall be substituted; and
- (ii) after the word "Counsel" the words "and Federal Counsel" shall be inserted.

7. Insertion of new sections, Ordinance, VII of 1970.- In the said Ordinance, after section 4A, the following new sections shall be inserted, namely:-

"4B. Validation.- Notwithstanding anything contained in this Ordinance or any other law for the time being in force or the rules made there under,-

- (a) any Federal Counsel appointed between the first day of October, 1995 and the 30th day of October, 2009 (both days inclusive) shall be deemed to have been validly appointed and regularized and the retainer ship fee paid to him during the aforesaid period shall be deemed to have been validly paid and regularized; and
- (b) the retainer ship fee due but not paid to any Federal Counsel for the aforesaid period commencing from the first day of October, 1995 to the 30th day of October, 2009 (both days inclusive) shall be deemed to have been validly due and payable.

4C. Rules.- The Federal Government may make rules to carry out the purposes of this Ordinance."
